

FEDERAL MARITIME COMMISSION

Docket No. 17-09

FIAT CHRYSLER AUTOMOBILES NV, FCA US LLC, AND FCA ITALY S.P.A.

v.

**WALLENUS WILHELMSSEN LOGISTICS AS, WALLENUS WILHELMSSEN
LOGISTICS AMERICAS LLC, EUKOR CAR CARRIERS INC.,
NIPPON YUSEN KABUSHIKI KAISHA, NYK LINE (NORTH AMERICA) INC.,
MITSUI O.S.K. LINES, LTD., MOL (AMERICA) INC.,
KAWASAKI KISEN KAISHA, LTD., "K" LINE AMERICA, INC.,
COMPAMA SUD AMERICAN DE VAPORES S.A., AND HOEGH AUTOLINERS AS**

**RESPONDENT MITSUI O.S.K. LINES, LTD. AND MOL (AMERICA) INC.'S ANSWER
AND AFFIRMATIVE DEFENSES TO THE COMPLAINT**

Respondents Mitsui O.S.K. Lines, Ltd. ("MOL") and MOL (America) Inc. ("MOL (America)") (hereinafter together the "Answering Respondents"), for their answer to the Complaint dated October 6, 2017, state as follows:¹

1. Paragraph 1 sets forth legal assertions that do not require a response. To the extent a response is required, Answering Respondents deny the allegations of Paragraph 1 as they relate to Answering Respondents, except admit that Complainants purport to bring a complaint against Answering Respondents.

2. The first three sentences of Paragraph 2 set forth legal assertions that do not require a response. To the extent a response is required, Answering Respondents deny the allegations in the first three sentences of Paragraph 2 as they relate to Answering Respondents.

¹ All allegations in the Complaint that are not specifically admitted in this Answer are denied.

The allegations in the last sentence of Paragraph 2 are not directed to Answering Respondents and are legal assertions, and therefore no response is required. To the extent a response is required, Answering Respondents are without knowledge or information sufficient to admit or deny the allegations in the last sentence of Paragraph 2, and on that basis deny the allegations.

3. Paragraph 3 sets forth legal assertions that do not require a response. To the extent a response is required, Answering Respondents deny the allegations of Paragraph 3 as they relate to Answering Respondents.

4. Paragraph 4 sets forth legal assertions that do not require a response. To the extent a response is required, Answering Respondents deny the allegations of Paragraph 4 as they relate to Answering Respondents.

5. The allegations of Paragraph 5 are not directed to Answering Respondents, and therefore no response is required. To the extent a response is required, Answering Respondents are without knowledge or information sufficient to admit or deny the allegations of Paragraph 5, and on that basis deny the allegations.

6. The allegations of Paragraph 6 are not directed to Answering Respondents, and therefore no response is required. To the extent a response is required, Answering Respondents are without knowledge or information sufficient to admit or deny the allegations of Paragraph 6, and on that basis deny the allegations.

7. The allegations of Paragraph 7 are not directed to Answering Respondents, and therefore no response is required. To the extent a response is required, Answering Respondents are without knowledge or information sufficient to admit or deny the allegations of Paragraph 7, and on that basis deny the allegations.

8. The allegations of Paragraph 8 are not directed to Answering Respondents, and therefore no response is required. To the extent a response is required, Answering Respondents are without knowledge or information sufficient to admit or deny the allegations of Paragraph 8, and on that basis deny the allegations.

9. The allegations of Paragraph 9 are not directed to Answering Respondents, and therefore no response is required. To the extent a response is required, Answering Respondents are without knowledge or information sufficient to admit or deny the allegations of Paragraph 9, and on that basis deny the allegations.

10. Answering Respondents admit the allegations in the first sentence of Paragraph 10. Answering Respondents deny that Mitsui O.S.K. Bulk Shipping (USA), Inc. MOL (America) Inc. is a wholly-owned subsidiary of MOL known as “MOBUSA.” To the extent the allegations in Paragraph 10 are directed to “MOBUSA” as defined in Paragraph 10, Answering Respondents are without knowledge or information sufficient to admit or deny the allegations, and on that basis deny the allegations. Answering Respondents admit that Mitsui O.S.K. Bulk Shipping (USA), LLC and MOL (America) Inc., are, separately, wholly-owned subsidiaries of MOL, but deny that World Logistics Service (U.S.A.), Inc. is a wholly-owned subsidiary of MOL and that it is headquartered in Long Beach, California. The remaining allegations in the third sentence of Paragraph 10 assert legal conclusions, to which no response is required. To the extent a response is required, Answering Respondents deny the remaining allegations in the third sentence of Paragraph 10 as they relate to Answering Respondents. Answering Respondents admit that MOL and/or entities related to MOL sold roll on, roll off cargo services to FCA for shipments to and from the United States and between international ports during the relevant period. Answering Respondents deny the remaining allegations of Paragraph 10.

11. The allegations of Paragraph 11 are not directed to Answering Respondents, and therefore no response is required. To the extent a response is required, Answering Respondents are without knowledge or information sufficient to admit or deny the allegations of Paragraph 11, and on that basis deny the allegations.

12. The allegations of Paragraph 12 are not directed to Answering Respondents, and therefore no response is required. To the extent a response is required, Answering Respondents are without knowledge or information sufficient to admit or deny the allegations of Paragraph 12, and on that basis deny the allegations.

13. The allegations of Paragraph 13 are not directed to Answering Respondents, and therefore no response is required. To the extent a response is required, Answering Respondents are without knowledge or information sufficient to admit or deny the allegations of Paragraph 13, and on that basis deny the allegations.

14. Paragraph 14 sets forth legal assertions that do not require a response. To the extent a response is required, Answering Respondents deny the allegations of Paragraph 14 as they relate to Answering Respondents, except admit that the FMC has subject matter jurisdiction over claims under these provisions as they relate to relief in the nature of a cease and desist order and deny that the FMC has subject matter jurisdiction over claims under these provisions as they relate to reparations.

15. Paragraph 15 sets forth legal assertions that do not require a response. To the extent a response is required, Answering Respondents deny the allegations of Paragraph 15 as they relate to Answering Respondents.

16. Paragraph 16 sets forth legal assertions that do not require a response. To the extent a response is required, Answering Respondents deny the allegations of Paragraph 16 as they relate to Answering Respondents.

17. Answering Respondents admit the allegations in the first and second sentences of Paragraph 17 as they relate to Answering Respondents, except are without knowledge or information sufficient to admit or deny the allegation that “it is cheaper than transporting the vehicles in containers and, in some instances, the vehicles cannot be transported in containers,” and on that basis deny the allegation. The remaining allegation of Paragraph 17 sets forth legal assertions that do not require a response. To the extent a response is required, Answering Respondents are without knowledge or information sufficient to admit or deny the remaining allegations of Paragraph 17, and on that basis deny the allegations.

18. The allegations of Paragraph 18 are not directed to Answering Respondents, and therefore no response is required. To the extent a response is required, Answering Respondents are without knowledge or information sufficient to admit or deny the allegations of Paragraph 18, and on that basis deny the allegations.

19. Paragraph 19 sets forth legal assertions that do not require a response. To the extent a response is required, Answering Respondents deny the allegations of Paragraph 19 as they relate to Answering Respondents.

20. The allegations of Paragraph 20 are not directed to Answering Respondents and contain legal assertions to which no response is required. To the extent a response is required, Answering Respondents are without knowledge or information sufficient to admit or deny the allegations of Paragraph 20, and on that basis deny the allegations.

21. Answering Respondents deny the allegations of Paragraph 21 as they relate to Answering Respondents. Answering Respondents are without knowledge or information sufficient to admit or deny the remaining allegations of Paragraph 21, and on that basis deny the remaining allegations.

22. Paragraph 22 contains legal assertions that do not require a response. To the extent a response is required, Answering Respondents deny those allegations. Answering Respondents are without knowledge or information sufficient to admit or deny the remaining allegations of Paragraph 22, and on that basis deny the remaining allegations.

23. The allegations in the first and second sentences of Paragraph 23 are not directed to Answering Respondents, and therefore no response is required. To the extent a response is required, Answering Respondents are without knowledge or information sufficient to admit or deny the allegations in the first and second sentences of Paragraph 23, and on that basis deny the allegations. The remaining allegations of Paragraph 23 set forth legal assertions that do not require a response. To the extent a response is required, Answering Respondents deny the remaining allegations of Paragraph 23 as they relate to Answering Respondents.

24. The allegations of Paragraph 24 set forth legal assertions that do not require a response. To the extent a response is required, Answering Respondents deny the allegations of Paragraph 24 as they relate to Answering Respondents.

25. The allegations of Paragraph 25 set forth legal assertions that do not require a response. To the extent a response is required, Answering Respondents deny the allegations of Paragraph 25 as they relate to Answering Respondents.

26. The allegations of Paragraph 26 set forth legal assertions that do not require a response. To the extent a response is required, Answering Respondents deny the allegations of Paragraph 26 as they relate to Answering Respondents.

27. The allegations of Paragraph 27 set forth legal assertions that do not require a response. To the extent a response is required, Answering Respondents deny the allegations of Paragraph 27 as they relate to Answering Respondents.

28. The allegations of Paragraph 28 set forth legal assertions that do not require a response. To the extent a response is required, Answering Respondents deny the allegations of Paragraph 28 as they relate to Answering Respondents.

29. The allegations of Paragraph 29 set forth legal assertions that do not require a response. To the extent a response is required, Answering Respondents deny the allegations of Paragraph 29 as they relate to Answering Respondents.

30. The allegations of Paragraph 30 set forth legal assertions that do not require a response. To the extent a response is required, Answering Respondents deny the allegations of Paragraph 30 as they relate to Answering Respondents.

31. The allegations of Paragraph 31 set forth legal assertions that do not require a response. To the extent a response is required, Answering Respondents deny the allegations of Paragraph 31 as they relate to Answering Respondents.

32. The allegations in the first sentence of Paragraph 32 set forth legal assertions that do not require a response. To the extent a response is required, Answering Respondents deny the allegations in the first sentence of Paragraph 32 as they relate to Answering Respondents. The remaining allegations of Paragraph 32 are not directed to Answering Respondents, and therefore no response is required. To the extent a response is required,

Answering Respondents are without knowledge or information sufficient to admit or deny the remaining allegations of Paragraph 32, and on that basis deny the allegations.

33. The allegations of Paragraph 33 are not directed to Answering Respondents, and therefore no response is required. To the extent a response is required, Answering Respondents are without knowledge or information sufficient to admit or deny the allegations of Paragraph 33, and on that basis deny the allegations.

34. The allegations of Paragraph 34 are not directed to Answering Respondents, and therefore no response is required. To the extent a response is required, Answering Respondents are without knowledge or information sufficient to admit or deny the allegations of Paragraph 34, and on that basis deny the allegations.

35. The allegations of Paragraph 35 are not directed to Answering Respondents, and therefore no response is required. To the extent a response is required, Answering Respondents are without knowledge or information sufficient to admit or deny the allegations of Paragraph 35, and on that basis deny the allegations.

36. The allegations of Paragraph 36 are not directed to Answering Respondents, and therefore no response is required. To the extent a response is required, Answering Respondents are without knowledge or information sufficient to admit or deny the allegations of Paragraph 36, and on that basis deny the allegations.

37. The allegations of Paragraph 37 are not directed to Answering Respondents, and therefore no response is required. To the extent a response is required, Answering Respondents are without knowledge or information sufficient to admit or deny the allegations of Paragraph 37, and on that basis deny the allegations.

38. The allegations of Paragraph 38 are ambiguous, purport to refer to actions allegedly taken by parties other than the Answering Respondents, and constitute legal assertions, and therefore no response by Answering Respondents is required.

39. The allegations of Paragraph 39 set forth legal assertions, and therefore no response is required. To the extent a response is required, Answering Respondents deny the allegations of Paragraph 39 as they relate to Answering Respondents.

40. The allegations of Paragraph 40 are not directed to Answering Respondents and are legal assertions, and therefore no response is required. To the extent a response is required, Answering Respondents are without knowledge or information sufficient to admit or deny the allegations of Paragraph 40, and on that basis deny the allegations.

41. The allegations of Paragraph 41 are not directed to Answering Respondents and are legal assertions, and therefore no response is required. To the extent a response is required, Answering Respondents are without knowledge or information sufficient to admit or deny the allegations of Paragraph 41, and on that basis deny the allegations.

42. Paragraph 42 sets forth legal assertions that do not require a response. To the extent a response is required, Answering Respondents deny the allegations of Paragraph 42 as they relate to Answering Respondents.

43. Paragraph 43 sets forth legal assertions that do not require a response. To the extent a response is required, Answering Respondents deny the allegations of Paragraph 43 as they relate to Answering Respondents.

44. Paragraph 44 sets forth legal assertions that do not require a response. To the extent a response is required, Answering Respondents deny the allegations of Paragraph 44 as they relate to Answering Respondents.

45. Paragraph 45 sets forth legal assertions that do not require a response. To the extent a response is required, Answering Respondents deny the allegations of Paragraph 45 as they relate to Answering Respondents.

46. The allegations of Paragraph 46 are not directed to Answering Respondents and are legal assertions, and therefore no response is required. To the extent a response is required, Answering Respondents are without knowledge or information sufficient to admit or deny the allegations of Paragraph 46, and on that basis deny the allegations.

47. The allegations of Paragraph 47 are not directed to Answering Respondents and are legal assertions, and therefore no response is required. To the extent a response is required, Answering Respondents are without knowledge or information sufficient to admit or deny the allegations of Paragraph 47, and on that basis deny the allegations.

48. The responses set forth in Paragraphs 1-47 are reasserted and incorporated by reference as if fully set forth herein.

49. Paragraph 49 sets forth legal assertions that do not require a response. To the extent a response is required, Answering Respondents deny the allegations of Paragraph 49 as they relate to Answering Respondents.

50. Paragraph 50 sets forth legal assertions that do not require a response. To the extent a response is required, Answering Respondents deny the allegations of Paragraph 50 as they relate to Answering Respondents.

51. Paragraph 51 sets forth legal assertions that do not require a response. To the extent a response is required, Answering Respondents deny the allegations of Paragraph 51 as they relate to Answering Respondents.

52. Paragraph 52 sets forth legal assertions that do not require a response. To the extent a response is required, Answering Respondents deny the allegations of Paragraph 52 as they relate to Answering Respondents.

53. The responses set forth in Paragraphs 1-52 are reasserted and incorporated by reference as if fully set forth herein.

54. Paragraph 54 sets forth legal assertions that do not require a response. To the extent a response is required, Answering Respondents deny the allegations of Paragraph 54 as they relate to Answering Respondents.

55. The responses set forth in Paragraphs 1-54 are reasserted and incorporated by reference as if fully set forth herein.

56. Paragraph 56 sets forth legal assertions that do not require a response. To the extent a response is required, Answering Respondents deny the allegations of Paragraph 56 as they relate to Answering Respondents.

57. The responses set forth in Paragraphs 1-56 are reasserted and incorporated by reference as if fully set forth herein.

58. Paragraph 58 sets forth legal assertions that do not require a response. To the extent a response is required, Answering Respondents deny the allegations of Paragraph 58 as they relate to Answering Respondents.

59. Paragraph 59 sets forth legal assertions that do not require a response. To the extent a response is required, Answering Respondents deny the allegations of Paragraph 59 as they relate to Answering Respondents.

60. The responses set forth in Paragraphs 1-59 are reasserted and incorporated by reference as if fully set forth herein.

61. Paragraph 61 sets forth legal assertions that do not require a response. To the extent a response is required, Answering Respondents deny the allegations of Paragraph 61 as they relate to Answering Respondents.

62. The responses set forth in Paragraphs 1-61 are reasserted and incorporated by reference as if fully set forth herein.

63. Paragraph 63 sets forth legal assertions that do not require a response. To the extent a response is required, Answering Respondents deny the allegations of Paragraph 63 as they relate to Answering Respondents.

64. Paragraph 64 sets forth legal assertions that do not require a response. To the extent a response is required, Answering Respondents deny the allegations of Paragraph 64 as they relate to Answering Respondents.

65. The responses set forth in Paragraphs 1-64 are reasserted and incorporated by reference as if fully set forth herein.

66. Paragraph 66 sets forth legal assertions that do not require a response. To the extent a response is required, Answering Respondents deny the allegations of Paragraph 66 as they relate to Answering Respondents.

67. Paragraph 67 sets forth legal assertions that do not require a response. To the extent a response is required, Answering Respondents deny the allegations of Paragraph 67 as they relate to Answering Respondents.

In response to the “WHEREFORE” clause on pages 20 through 21 of the Complaint, Answering Respondents deny that Complainants are entitled to any relief whatsoever.

Answering Respondents deny any allegation in the Complaint to which a response by it is required that is not expressly admitted.

Answering Respondents deny each and every allegation contained within each and every heading contained in the Complaint.

AFFIRMATIVE DEFENSES

1. Complainants' Complaint fails to state a claim upon which relief may be granted.
2. Complainants' claims are barred by the applicable statutes of limitations.
3. Complainants' claims are barred by the doctrine of laches.
4. Complainants' claims are barred by the doctrine of waiver.
5. Complainants' claims are barred by the doctrine of estoppel.
6. Complainants lack standing or capacity under applicable law to bring these claims.
7. Insofar as Answering Respondents may be held liable for any of the Complainants' claims, any such liability shall be reduced or eliminated under the principles of indemnity, contribution, assumption of risk, or comparative fault.
8. Complainants' putative recoveries are barred, in whole or in part, by Complainants' failure to mitigate damages.
9. Answering Respondents' actions or omissions did not cause the injuries or other harms claimed by Complainants in this case.
10. To the extent that Complainants are found to have suffered the harms alleged in the Complaint, those harms were caused by persons or entities other than the Answering Respondents.
11. Complainants' claims must be dismissed based on principles of international comity.

12. Complainants' claims are barred because they invoke the lawful acts or omissions of Answering Respondents.

13. Answering Respondents do not and did not owe a duty to any of the Complainants in this case.

Answering Respondents adopt all applicable defenses set forth in the answers of all other respondents in this case, except to the extent that they would impose liability on Answering Respondents. Answering Respondents further reserve the right to assert additional defenses that become available or apparent and reserve the right to amend this Answer to assert such defenses.

Finally, Answering Respondents add that on May 7, 2018, the Presiding Officer issued the Initial Decision granting in part and denying in part the supplemental consolidated motion to dismiss the FCA Complaint. The FCA Complaint was filed on October 6, 2017, and has not been amended in light of the Presiding Officer's Initial Decision. Thus, the answers and responses that are asserted herein are limited solely to the claims remaining in the Complaint after the Initial Decision.

WHEREFORE, Answering Respondents respectfully request judgment in their favor on all counts of the Complaint, and any other relief that is so warranted.

Dated: October 9, 2018

Respectfully submitted,

James L. Cooper /AW

James L. Cooper
james.cooper@arnoldporter.com
Anne P. Davis
anne.davis@arnoldporter.com
Adam M. Pergament
adam.pergament@arnoldporter.com
Andy Wang
andy.wang@arnoldporter.com
ARNOLD & PORTER
KAYE SCHOLER LLP
601 Massachusetts Avenue NW
Washington, DC 20001
Tel: (202) 942-5000

Robert B. Yoshitomi
Ryoshitomi@nixonpeabody.com
Eric C. Jeffrey
Ejeffrey@nixonpeabody.com
NIXON PEABODY LLP
799 9th Street, N.W.
Washington, DC 20001
Tel: (202) 585-8000

*Attorneys for Answering Respondents Mitsui O.S.K.
Lines, Ltd., and MOL (America) Inc.*

VERIFICATION

Mr. Yuichi Hirano, hereby verifies as follows:

1. I am an Associate General Manager (Legal) at Mitsui O.S.K. Lines, Ltd.
2. I am authorized to make this verification on behalf of the Answering Respondents.
3. I hereby verify that the facts contained in the foregoing answer and affirmative defenses are true and correct to the best of my knowledge, information, and belief
4. I verify the foregoing under penalty of perjury under the laws of the United States.

DATED: October 9, 2018

Respectfully submitted,

平野 祐一

Mr. Yuichi Hirano

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that I electronically filed the foregoing document with the Secretary of the Federal Maritime Commission on this 9th day of October, 2018. I also certify that true and correct paper copies will be delivered to the Secretary of the Federal Maritime Commission. I also certify that true and correct copies thereof were sent electronically to all counsel for the parties identified in Docket No. 17-09.

By: James L. Cooper / AW
James L. Cooper

Dated: October 9, 2018